POLI 391: World Constitutions

University of South Carolina
Tues/Thurs 10:05 – 11:20 AM
Close-Hipp (CLHIPP) 363
Fall 2026



Convention President Elisa Loncón and Vice President Jaime Bassa preside over the opening ceremony of the Chilean Constitutional Convention, Santiago, Chile, July 4, 2021 (Photo by Cristina Dorador).

Instructor

Name: Matthew Martin, PhD (he/him)
Email: mattmartin@sc.edu
Office location: Gambrell Hall (GAMBRL) Room 343
Office hours: Thursdays, 11:30 AM–1:30 PM (schedule via Bookings)

I encourage you to visit me during office hours. I want to get to know my students! I am happy to discuss course material, research ideas, or life in general. If you are busy during my office hours, we can find another time. If you would prefer to meet over Zoom, we can make that work, too.

Outside of office hours, the best way to contact me is via email. You can also contact me via Blackboard. During the week, I will respond to your message within 24 hours. During the weekend, I may take longer to respond. I usually respond to messages during normal business hours between 8:00 AM and 5:00 PM, Monday through Friday.

Teaching assistant

Name: Diego Medina y del Hierro
Email: medinaydelhierro@sc.edu
Office location: Gambrell Hall (GAMBRL) Room 305
Office hours: Mondays, 12:00–1:00 PM, Tuesdays 1:00–2:00 PM

Course description

Over two centuries have passed since Thomas Jefferson first proposed an expiration date of 19 years for constitutions.[1] His timeless prescription that constitutions should be replaced once a generation has corresponded almost exactly to the endurance of these documents in practice.[2] Since 1789, over 900 new constitutions have entered into force.[3] Recently, we have seen processes of constitutional reform unfold across the globe—in Bangladesh, Chile, Guinea, Jamaica, Thailand, Tuvalu, and Uzbekistan, among others—with more on the horizon. Constitutions are fundamental to the establishment and re-establishment of a country's social, political, and economic order. These texts, beyond providing for a system of state institutions, serve as a connection between the foundational past and the aspirational future of a national community.

Countries have experimented relentlessly with constitutional design, transforming our understanding of how constitutions are made, maintained, and replaced. Each country possesses a unique approach to this process, offering a rich universe of cases to explore. What are the theoretical foundations of modern constitutionalism? How do we understand the stages of the design process? What innovations have governments incorporated into constitution-making? How are democratic and authoritarian constitutions different? Why do constitutions ultimately die? These are some of the many questions we will explore together using the diversity of constitutional systems at our disposal. This syllabus is, in effect, the constitution of our course—a document that establishes the rules, procedures, and expectations that govern our shared endeavor this semester.

The course is relevant for those students who have an interest in comparative public law and legal systems, institutional procedures and design, democracy and autocracy, and constitution-making processes around the globe. The readings will include materials on constitutional systems from various regions including Africa, Asia, and Latin America in particular.

Learning Objectives

1. Understand the fundamentals (stages, procedures, decisions) of constitutional design.
2. Gain specific knowledge in the fields of comparative politics and public law.
3. Develop and strengthen written communication and critical thinking skills, including the ability to use generative AI tools productively without outsourcing your own reasoning.
4. Learn to make meaningful interventions in discussions about constitutional politics around the globe.

Required materials

You must purchase one item for this course: the course packet, which contains all required readings. According to the College Board, during the 2024-2025 academic year, the average student budget for books and supplies at four-year public institutions was $1,290. I want to keep your costs as low as possible while still having you read on paper, given the learning benefits of doing so. The packet is available at the Russell House for $57. If the cost is a problem for any reason, please let me know, and we will figure it out. Optional readings are posted on Blackboard.

[1] Thomas Jefferson to James Madison, September 6, 1789; Letter to Samuel Kercheval, July 12, 1816.
[2] Zachary Elkins et al., *The Endurance of National Constitutions* (Cambridge University Press, 2009).
[3] Zachary Elkins and Tom Ginsburg, "Chronology of Constitutional Events," Comparative Constitutions Project, 2025 [2007], https://comparativeconstitutionsproject.org/.

Assignments and grading

Assignments	Due date	Percent of grade
Class citizenship	Every class	15%
Comparative constitutions project	Friday weekly	30%
In-class midterm exam	October 13	20%
Final paper	December 6	35%

Class citizenship (15%)

Class citizenship includes: (1) participation; (2) civility; and (3) one check-in with me. First, I expect you to do the assigned readings before class and arrive ready to discuss them. You cannot participate in discussions you are not present for, so attendance matters, even though I do not grade it directly (see "Absences" section). Second, I expect you to treat me and your fellow classmates with respect. You should express your ideas and views without reservation and listen to others' perspectives in a way that fosters dialogue. Please keep laptops closed and phones silenced and out of sight during class. Exceptions include a designated activity that requires a device, an accommodation through the Student Disability Resource Center, or a specific reason you have discussed with me. Third, you must complete one brief check-in with me during office hours. You will walk me through the argument and current reasoning behind your final paper. If you are concerned about your class citizenship grade, please ask me for feedback.

Comparative constitutions project (30%)

At the start of the semester, you will use Constitute to select one country whose constitution you will study throughout the course. Each week you will write a brief discussion post (400-500 words) using that week's readings to analyze how your country's constitution addresses the topic under study. I will post 12 prompts throughout the semester, each with some questions for reflection. You will write your posts in a shared Word document that I create for you, which allows me to see your writing process through version history. Responses must be completed by Friday at 11:59 PM so I have time to read them before the following week. You will receive a check-plus (100), check (90), check-minus (80), or incomplete (0). At the end of the semester, I will drop the three lowest grades and average the rest. Late posts do not count unless you are sick or have an emergency.

In-class midterm exam (20%)

You will complete one in-class midterm exam around the halfway point of the semester. The exam will consist of several short essay questions testing your comprehension of the key concepts, arguments, and readings from the first half of the course. I will distribute the prompts one week before the exam so you can prepare your thinking, but the exam itself is closed-book and closed-notes. You will need to write your responses from memory.

Final paper (35%)

You will write a final paper (2,500-3,000 words) developing an original argument about your country's constitutional system. This paper builds on the work you have done throughout the semester in the comparative constitutions project. Rather than summarizing what you have learned, you should identify a puzzle, tension, or significant feature of your country's constitution and develop an analytical argument about it. Further guidelines will be distributed later in the semester. Your oral check-in (see "class citizenship" above) will focus on your paper—we will discuss your argument and how your reasoning is developing.

Final grades

Percentage Range	Grade
90.0% - 100%	A
87.0% - 89.9%	B+
80.0% - 86.9%	B
77.0% - 79.9%	C+
70.0% - 76.9%	C
67.0% - 69.9%	D+
60.0% - 66.9%	D
0% - 59.9%	F

Note: Final course grades are calculated based on a percentage rounded to the nearest tenth of a percent. For example, a final score of 89.95% is rounded to 90.0% and is an A. 86.94% is rounded to 86.9% and is a B. This grading policy is not subject to appeal.

Extra credit

You may earn a small amount of extra credit by participating in research studies through the University's SONA research participation system. Online studies take roughly 15–20 minutes and are generally worth 1 SONA credit. Biometric and other in-lab studies require you to travel to a research lab and spend at least 30 minutes on site, so they are generally worth 4 SONA credits. You may participate in either or both types of studies, but a maximum of 5 SONA credits may be applied toward extra credit in this course.

Each SONA credit is worth 0.2 percentage points on your final course grade. One online study therefore adds 0.2 points, one in-lab study adds 0.8 points, and the maximum of 5 credits adds 1.0 point (for example, a final score of 88.7% would become 89.7%). Extra credit is added to your final percentage before the rounding described above. To count, studies must be completed by the last day of classes, Thursday, December 3 (or by the SONA system's end-of-semester deadline, if it is earlier). When you sign up, make sure your credits are assigned to this course (POLI 391). At the end of the semester, I will receive a report of the credits each student has earned and apply them automatically; you do not need to submit anything to me. Participation is entirely optional.

Late submissions

Late submissions are accepted for the final paper only, not for discussion posts. For each day late, however, you will receive a penalty of five points. Exceptions to this policy are subject to my discretion. If you are physically able, please contact me before the due date to request an extension. Assignments must be completed as soon as possible after the original due date and cannot be accepted after the graded ones have been returned.

Make-ups

If you miss the in-class midterm exam for a legitimate reason such as a medical emergency, please provide a doctor's note if applicable. I will schedule one make-up time for students to take the exam. Due to the challenges of booking rooms, I cannot accommodate individual make-up times.

Grade appeals

After the return of a graded work, you must wait three (3) days before contacting me about an appeal. After the waiting period, you have eleven (11) days to appeal a grade. Appeals must be

made in writing via email or Blackboard and provide specific evidence for the change. In total, the time frame for an appeal is fourteen (14) days from the day the graded assignment is returned.

Absences

I do not grade attendance mechanically, and I do not deduct points for individual absences. However, participation is a component of class citizenship (15% of your final grade), and you cannot participate in discussions you are not present for, so chronic absence will be reflected in your class citizenship grade. Additionally, the midterm exam and final paper are heavily based on what we discuss in class. Therefore, I strongly encourage you to come to every class session unless you are sick or have an emergency. If you anticipate needing to arrive late or leave early for any reason over the course of the semester, please talk to me, and we can find a solution.

Illness

You should not come to class if you are sick. You will have the opportunity to make up any missed work without penalty. Missing class due to illness will not affect your class citizenship grade. If you have to miss class, please notify me as soon as possible. Your health should always come first!

Religious holidays

If you plan to miss class to observe a religious holiday, please notify me at least one week prior to the date of observance. If you miss an assignment, you will be given an opportunity to complete the missed work within a reasonable time after the absence.

Disabilities

If you have a disability or other condition that may affect your attendance or academic performance, you may request relevant accommodations from the Student Disability Resource Center. Please make sure the relevant documentation is on file, and come to me as soon as possible to discuss your specific accommodation needs.

Use of AI Tools

Generative AI such as OpenAI's ChatGPT and Anthropic's Claude, otherwise known as Large Language Models (LLMs), are powerful tools, and they will be part of your professional lives, for better or worse. My goal is not to police your use of them, but to ensure you develop the thinking skills that make such tools useful rather than harmful. Research on learning suggests that the struggle to articulate your ideas—even when frustrating—is often where genuine understanding develops. When you offload that struggle to AI, you may get a finished product, but you risk missing the cognitive work that builds on your prior knowledge as well as your capacity for independent thought.

What's allowed

These rules apply to both the weekly posts and the final paper. AI is useful when it responds to thinking you have already done. It is less useful (and often harmful) when it generates arguments, conceptual distinctions, or theoretical frameworks you have not first developed yourself.
First, ask yourself: is the AI responding to my reasoning or my draft? If yes, use the template. If not, a one-line note is enough.

Not permitted

- Generating arguments, thesis statements, or analytical frameworks.
- Producing draft text, even as a "starting point" you plan to revise.
- Citing sources you found through AI without locating and reading them yourself (through the University Libraries database, Constitute, etc.).

Permitted with the template

- Stress-testing an argument you have already developed.
- Getting feedback on organization or clarity after you have written a full draft.
- Checking whether you understand a concept correctly, once you have a working sense of it.

Permitted with a note

- Explaining a concept or term.
- Clarifying what a CCP prompt is asking.
- Checking grammar and mechanics on text you have already written.
- Suggesting possible sources, if you locate and verify each source yourself before citing it (due to AI's persistent issues with hallucinations).

How to document

Your weekly posts live in a shared Word document that I create for you, which lets me see your writing process through version history. You are encouraged to write without AI assistance.

Template uses. If you use AI on your reasoning or your draft:

1. Fill in a copy of the template.
2. Paste the completed template into the AI chat as your prompt.
3. Paste the AI's reply below the template.
4. Name the tool you used (ChatGPT, Claude, Gemini, etc.).
5. Write your post or paper.
6. Add a brief note on what you took from the AI's feedback and why (2–3 sentences).

For posts, all of this goes in your Word document. For the final paper, it goes in an appendix at the end of your paper. See Example 2.

Note uses. Put the note at the end of your post, or in your paper's appendix:

- *Explanations:* "I used [tool] on [date] to explain [concept or passage]. I checked it against [reading and page, or lecture]."
- *Grammar:* "I used [tool] on [date] to check grammar and mechanics."
- *Sources:* "I used [tool] on [date] to find search terms/sources for [topic]. I located and verified every cited source myself."

Template

Instructions for AI: I am an undergraduate student working on my own argument. Your job is to be a critical thinking partner. Identify logical gaps or tensions in my reasoning, suggest alternative

interpretations I may not have considered, and raise objections to my argument. Do not give me "the answer" or draft my response.

My position: My question is ___. My tentative answer is ___. ("I'm not sure" is not acceptable. Take a stance.)

My reasoning: Why do I think this? What evidence or logic supports my view? (2–3 sentences.)

What I want from you: (Choose one) Stress-test my reasoning and identify gaps / Help me see alternatives I haven't considered / Check whether I'm understanding a concept correctly / Other (specify)

[Paste everything above this line into the AI chat.]

AI's response: (paste here)

Tool used: (e.g., ChatGPT, Claude, Gemini)

How I used this exchange: What did you take from the AI's feedback, and why? (Fill this in after you finish your post or paper.)

Misc.

Oral check-in

You must complete a brief oral check-in with me during office hours, scheduled through Bookings, by Friday, November 20. This is not an interrogation—it is a short conversation where you walk me through your argument and current reasoning on your final paper. I will ask questions like "How did you arrive at this argument?" or "What alternatives did you consider?" The check-in is pass/fail. You simply need to be able to explain your own thinking. This requirement is part of your class citizenship grade.

Academic honesty

All written work must be your own. I will bring any incident of academic dishonesty to the Office of Student Conduct and Academic Integrity, which can result in severe penalties such as a failing grade in this course.

Examples of academic dishonesty include copying someone else's work, copying and pasting text, fabricating citations, and submitting AI-generated text as your own. You can be held responsible and penalized even if you commit a violation accidentally. For more information on academic honesty, visit the Office of Student Conduct and Academic Integrity.

Additional resources

The Student Gateway offers a list of various resources that are important for students as you engage with your course and the university, including disability services, mental health support, and emergency services.

Syllabus changes

This syllabus is only a guide for the course and is subject to change with advance notice. I will notify you of any changes as soon as possible by making an announcement on the Blackboard course page. Like any constitution, this document may be amended—though I reserve the authority to decide when and how.

Course schedule and readings

The one area of this course where I ask you not to use AI ever is when doing the assigned reading. It may sound counterintuitive, but the point of reading is to struggle—to push yourself beyond the boundaries of what you currently know. If you choose to throw the readings into an AI tool and ask for a summary, the only person you are hurting is yourself. Even effective skimming is a skill you must develop! It is better to come to class with one well-developed idea, thought, or reflection after speed-reading an article than to come with a surface-level summary that adds next to nothing to the discussion.

Week 1: What is a constitution?

Tuesday, August 18:

- Course syllabus (Be prepared for a quiz!)
- Corwin, Edward. 1936. "The Constitution as Instrument and as Symbol." *American Political Science Review* 30 (6): 1071–85.

Thursday, August 20:

- Elkins, Zachary, Tom Ginsburg, and James Melton. 2009. "Conceptualizing Constitutions." In *The Endurance of National Constitutions*. Cambridge University Press. 36–64.
- **Optional:** Bulmer, Elliot. 2017. *What Is a Constitution? Principles and Concepts*. International IDEA Constitution-Building Primer 1. International Institute for Democracy and Electoral Assistance. 5–28.

Week 2: Constitutional theory

Tuesday, August 25:

- Jacobsohn, Gary J., and Yaniv Roznai. 2020. "Constitutional Revolutions and Constituent Power." In *Constitutional Revolution*. Yale University Press. 224–260.

Thursday, August 27:

- Hirschl, Ran. 2013. "The Strategic Foundations of Constitutions." In *Social and Political Foundations of Constitutions*, 1st ed., edited by Denis J. Galligan and Mila Versteeg. Cambridge University Press. 157–181.

Week 3: Initiation and procedural design

Tuesday, September 1:

- Escudero, María Cristina, and Alejandro Olivares L. 2021. "From the Dance of Those Left Out to a New Constitution: Channeling the Chilean Social Unrest." In *The Social Outburst and Political Representation in Chile*, edited by Bernardo Navarrete and Víctor Tricot. 173–192.
- **Optional:** Elster, Jon. 1995. "Forces and Mechanisms in the Constitution-Making Process." *Duke Law Journal* 45 (2): 364–96.

Thursday, September 3:

- Ginsburg, Tom, Zachary Elkins, and Justin Blount. 2009. "Does the Process of Constitution-Making Matter?" *Annual Review of Law and Social Science* 5 (1): 201–23.

Week 4: Drafting and deliberation

Tuesday, September 8:

- Elster, Jon. 2012. "The Optimal Design of a Constituent Assembly." In *Collective Wisdom: Principles and Mechanisms*, edited by Hélène Landemore and Jon Elster. Cambridge University Press. 148–172.

Thursday, September 10:

- Negretto, Gabriel L. 2018. "Democratic Constitution-Making Bodies: The Perils of a Partisan Convention." *International Journal of Constitutional Law* 16 (1): 254–79.

Week 5: Public participation

Tuesday, September 15:

- Hart, Vivien. 2003. "Democratic Constitution Making." In *Special Report*. United States Institute of Peace. 1–12.
- Saati, Abrak. 2019. "Participatory Constitution-Making as a Transnational Legal Norm: Why Does It 'Stick' in Some Contexts and Not in Others?" *Constitution-Making and Transnational Legal Order*, 283–311.

Thursday, September 17:

- Martin, Matthew. 2025. "Elite Fractures, Public Capture: The Strategic Use of Public Consultation in Global Constitution-Making." *Journal of Law and Courts* 13 (1): 1–34.

- **Optional:** Constitutions For Democracy (2022), "Does a constitution-making process need to be deliberative?," 26-minute podcast episode.

Week 6: Approval

Tuesday, September 22:

- Elkins, Zachary, and Alexander Hudson. 2019. "The Constitutional Referendum in Historical Perspective." In *Comparative Constitution Making*, edited by David Landau and Hanna Lerner. Edward Elgar Publishing. 142–164.

Thursday, September 24:

- Lynch, Gabrielle. 2006. "The Fruits of Perception: 'Ethnic Politics' and the Case of Kenya's Constitutional Referendum." *African Studies* 65 (2): 233–70.
- **Optional:** Cottrell, Jill, and Yash Ghai. 2007. "Constitution Making and Democratization in Kenya (2000–2005)." *Democratization* 14 (1): 1–25.

Week 7: Amendments

Tuesday, September 29:

- Albert, Richard. 2019. "The Boundaries of Constitutional Amendment." In *Constitutional Amendments: Making, Breaking, and Changing Constitutions*. 61-92.

Thursday, October 1:

- Lijphart, Arend. 2017. "Chapter 12. Constitutions: Amendment Procedures and Judicial Review." In *Patterns of Democracy*. Yale University Press. 204–212.
- Blake, William D., Joseph Francesco Cozza, David A. Armstrong, and Amanda Friesen. 2024. "Social Capital, Institutional Rules, and Constitutional Amendment Rates." *American Political Science Review* 118 (2): 1075–83.

Week 8: Constitutional identity

Tuesday, October 6:

- Jacobsohn, Gary Jeffrey. 2006. "Constitutional Identity." *The Review of Politics* 68 (3): 361–97.

Thursday, October 8:

- Bui, Ngoc Son. 2017. "Globalization of Constitutional Identity." *Washington International Law Journal* 26 (3): 463–492.

Week 9: Midterm exam/Fall break

Tuesday, October 13:

- Midterm exam

Thursday, October 15:

- No class due to fall break.

Week 10: Democratic constitutions

Tuesday, October 20:

- Negretto, Gabriel L., and Solongo Wandan. 2020. "Democratic Constitutional Replacements and Majoritarian Politics: The Cases of Poland (1993–1997) and Hungary (2010–2011)." In *Redrafting Constitutions in Democratic Regimes*, 1st ed., edited by Gabriel L. Negretto. Cambridge University Press. 155–174.

Thursday, October 22:

- Dahl, Robert A. 2003. "Introduction: Fundamental Questions" and "What the Framers Couldn't Know," In *How Democratic is the American Constitution?* Second Edition. Yale University Press. 1–39.

Week 11: Authoritarian constitutions

Tuesday, October 27:

- Fruhstorfer, Anna. 2025. "Why Are Autocratic Constitutions Amended?" In *Constitutional Change under Autocracy*, 1st ed., by Anna Fruhstorfer. Oxford University Press. 41–84.
- **Optional:** Ginsburg, Tom. 2020. "Beyond Window Dressing: Constitutions in Authoritarian Regimes." In *Modern Constitutions*, edited by Rogers M. Smith and Richard R. Beeman. University of Pennsylvania Press. 133–153.

Thursday, October 29:

- Elkins, Zachary, Tom Ginsburg, and James Melton. 2014. "The Content of Authoritarian Constitutions." *Constitutions in Authoritarian Regimes*, 141–164.

- **Optional:** Law, David S., and Mila Versteeg. 2014. "Constitutional Variation Among Strains of Authoritarianism." In *Constitutions in Authoritarian Regimes*. Cambridge University Press. 165–196.

Week 12: Election Day/Beyond the nation-state

Tuesday, November 3:

- No class on Election Day.

Thursday, November 5:

- Gover, Kirsty. 2010. "Comparative Tribal Constitutionalism: Membership Governance in Australia, Canada, New Zealand, and the United States." *Law & Social Inquiry* 35 (03): 689–762.
- **Optional:** Hirschl, Ran. 2020. "Constitutions and the Metropolis." *Annual Review of Law and Social Science* 16 (1): 59–77.

Week 13: Constitutions and courts

Tuesday, November 10:

- Brinks, Daniel M., and Abby Blass. 2018. "Constitutional Justice in the Americas at the Turn of the Millennium." In *The DNA of Constitutional Justice in Latin America*. 1–17.
- Baines, Beverley, and Ruth Rubio-Marin. 2004. "Introduction: Toward a Feminist Constitutional Agenda." In *The Gender of Constitutional Jurisprudence*, edited by Beverley Baines and Ruth Rubio-Marin. Cambridge University Press. 1–21.

Thursday, November 12:

- Dixon, Rosalind. 2007. "Creating Dialogue about Socioeconomic Rights: Strong-Form versus Weak-Form Judicial Review Revisited." *International Journal of Constitutional Law* 5 (3): 391–418.
- **Optional:** Tushnet, Mark. 2004. "Social Welfare Rights and the Forms of Judicial Review." *Texas Law Review* 82: 1895–1920.

Week 14: Impact

Tuesday, November 17:

- Chilton, Adam S., and Mila Versteeg. 2016. "Do Constitutional Rights Make a Difference?" *American Journal of Political Science* 60 (3): 575–89.

- Stamler-Goody (2020), "Why some rights are violated more often—even in a democracy," Interview with Dr. Adam Chilton

Thursday, November 19:

- Brinks, Daniel M., and Varun Gauri. 2014. "The Law's Majestic Equality? The Distributive Impact of Judicializing Social and Economic Rights." *Perspectives on Politics* 12 (2): 375–93.
- Constitute (2021), "Data stories: How many rights is enough?," read here

Week 15: Thanksgiving recess

Monday, November 23 – Friday, November 27:

- No class

Week 16: Constitutional endurance

Tuesday, December 1:

- Elkins, Zachary, Tom Ginsburg, and James Melton. 2009. "What Makes Constitutions Endure?" In *The Endurance of National Constitutions*. Cambridge University Press. 65–92.
- Comparative Constitutions Project (2026), "Constitutional Chronology," Data visualization

Thursday, December 3:

- Course wrap-up
- Final paper due by Sunday, December 6 at 11:59 PM EST.

Appendix

Example 1: A note on a weekly post

At the end of the post:

I used ChatGPT on September 28 to explain Elster's distinction between reason, interest, and passion. I checked it against Elster (2012) and my Week 4 lecture notes; the explanation matched, but a quotation it attributed to Elster is not in the reading, so I did not use it.

Example 2: The template in a final paper

Instructions for AI: I am an undergraduate student working on my own argument. Your job is to be a critical thinking partner. Identify logical gaps or tensions in my reasoning, suggest alternative interpretations I may not have considered, and raise objections to my argument. Do not give me "the answer" or draft my response.

My position: The question I am working on is whether Turkey's 1982 Constitution reflects a "constitutional identity" (per Jacobsohn) that is fundamentally militaristic, and, if so, whether this identity persists after the extensive amendments of the 2000s and 2010s. My tentative answer is that the 1982 Constitution's identity remains rooted in military tutelage despite civilian-led amendments. The unamendable provisions in Articles 1-3 and the original design of the National Security Council encoded a vision of the state that subsequent amendments worked around rather than displaced.

My reasoning: Jacobsohn argues that constitutional identity is not static but evolves through "disharmony" between a document's commitments and its political community. In Turkey's case, the 2010 referendum restructured the Constitutional Court and reduced military influence on the judiciary, but it did so through executive consolidation rather than a broadly deliberative process. This suggests the tutelary identity wasn't replaced by a democratic one—it was replaced by a different form of concentrated authority. The "disharmony" shifted but didn't resolve toward pluralism.

What I want from you: Stress-test my reasoning and identify gaps.

AI's response:

Your argument has a clear through-line, but here are some tensions worth working through:
First, you're treating "military tutelage" and "executive consolidation" as comparable forms of concentrated authority, which lets you argue the identity persisted in a new guise. But Jacobsohn's framework distinguishes between identity content and identity structure. You might need to address whether a shift from military to civilian concentration really constitutes continuity of constitutional identity or whether it's better understood as a constitutional revolution—a concept Jacobsohn and Roznai develop in the reading from Week 2. If the locus of power changed that fundamentally, calling it the "same identity" may be doing more rhetorical work than analytical work.
Second, your claim about Articles 1-3 is strong but underspecified. Which specific commitments in the unamendable provisions do you see as encoding military tutelage? The provisions protect the

republic's form, territorial integrity, and secularism—these are substantive values that predate the 1982 Constitution and trace back to Kemalist principles from the 1920s. A reviewer could argue these reflect republican identity, not specifically military identity, and that the military simply appointed itself guardian of values it didn't author. That distinction matters for your argument. Third, you lean on the 2010 referendum as your main example of post-1982 change, but the 2017 amendments converting Turkey to a presidential system are arguably more consequential for constitutional identity. If you don't address 2017, a reader may wonder whether your argument is incomplete.

Finally, consider a counterargument: maybe the ease with which amendments restructured military prerogatives shows the identity was not as deeply rooted as you claim. If tutelary identity were truly foundational, it might have been harder to dislodge through ordinary amendment procedures. You might need to explain why formal-legal changes didn't displace the identity you're tracking.

Tool used: Claude, Fable 5.1

How I used this exchange: Claude's first point pushed me to clarify that I'm arguing for structural continuity of concentrated authority, not continuity of the same kind of authority, which sharpened my thesis. The second point about Articles 1-3 made me realize I was conflating republican identity with military identity, so I added a paragraph distinguishing the two.

Instructor's Note

I developed this template with Claude over the spring and summer of 2026 and shortened it in September in response to your consultation. Both examples are invented for illustration, but they show what I expect: AI that engages your reasoning rather than replacing it, and a brief, honest account of what was useful and why.